
Considerations on regulatory pathways and policy recommendations for use of Bundibugyo virus disease (BVD) vaccines

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Recap of key terminology and language (not specific to BVD vaccines)

Concept	United States (FDA)	European Union (EMA)	Canada	DRC	Considerations
Clinical trial authorization	Investigational New Drug (IND)	CTA under Clinical Trials Regulation (EU)	Clinical Trial Application (CTA)	Clinical compassionate use pathway	If the vaccine remains under IND status, it cannot be commercially marketed
Individual / "compassionate" access	Expanded Access	Compassionate Use	Special Access Program (SAP)		Indemnification covered by insurance. Liability addressed by principal investigator & sponsor
Emergency authorization pathway	Emergency Use Authorization (EUA)	Conditional Marketing Authorization	Interim Order + PHE Drug pathway + SAP block release	Emergency Use Authorization (EUA) by ACOREP	WHO Emergency Use Listing (EUL) I&L needs to be addressed, case by case
Full marketing authorization	Biologics License Application (BLA)	Marketing Authorisation	Notice of Compliance (NOC)	Registration	WHO Prequalification (PQ)

Overview of potential pathways during a Public Health Emergency of International Concern (PHEIC) (1/3)

**Expanded access
(US/FDA)**

or

**Compassionate
use (EU/EMA)**

or

**Special access
program (Canada)**

Overview

- Requires a **Phase 3 Randomized Controlled Trial (RCT)** that shows the vaccine to be safe and efficacious against BVD.
- Allows individuals with serious or life-threatening diseases to receive investigational medicines with benefit known to exceed the risk outside clinical trials. Emergency use data complements RCTs (it does not replace them).
- **Requirements:**
 - 1) Approved protocol by the regulatory authority and Ethics Committee;
 - 2) Principal Investigator and sponsor (legally responsible);
 - 3) Standard Operating Procedures (SOPs);
 - 4) Insurance for Adverse Events (AEs), safety follow up; medical care by physicians provided if adverse events;
 - 5) Patients / participants informed consent;
 - 6) Data is kept confidential;
 - 7) Investigators have to be certified in Good Clinical Practices (GCPs)

Past experiences

2018–20 Ebola outbreak in DRC → Compassionate use of investigational Ebola vaccine was deployed to protect high-risk individuals

Pros

- *Triggered by an efficacy signal emerging from a BVD vaccine RCT, potentially enabling faster access than other regulatory pathways.*
- *Allows the use of investigational vaccine doses.*

Cons

- *Requires meeting multiple regulatory and operational requirements (as outlined above).*
- *Not suitable for large-scale vaccination campaigns.*
- *Does not permit procurement through Gavi's Access and Procurement Commitment (APC) mechanism or UNICEF procurement channels.*

Overview of potential pathways during a PHEIC (2/3)

WHO Emergency use listing (EUL)

- **WHO time-limited risk-based assessment for unlicensed vaccines** to expedite availability of these products under a **Public Health Emergency of International Concern (PHEIC)**.
- **Assists UN procurement agencies, international agencies, and Member States for procurement/use of vaccines** based on an **essential set of quality, safety, efficacy, and programmatic suitability**.
- A **vaccine manufacturer can apply to WHO** and should provide the following information:
 - manufacturing quality data
 - nonclinical data and clinical data
 - a plan to monitor quality, safety and efficacy in the field and an undertaking to submit any new data to WHO as soon as available
 - labelling details

Past experiences

2020–2023 COVID-19 PHEIC → EUL used for COVID-19 vaccines

2024–2025 Mpox PHEIC → EUL used for Mpox LC16m8 vaccine

Considerations

- *Reliance on WHO listed authorities (WLA)*
- *Can be used to facilitate country Emergency Use Authorization (EUA)*
- *Post deployment monitoring of quality, safety and efficacy is critical*
- *Can be provided almost concurrently with SAGE recommendations*
- *Allows procurement through Gavi's APC mechanism or UNICEF procurement channels*

Overview of potential pathways during a PHEIC (3/3)

WHO Prequalification (PQ)

- The WHO PQ process acts as an international assurance of **quality, safety, efficacy and suitability for LMICs immunization programmes. Vaccines that are procured by UN agencies and for financing by other agencies, including Gavi require WHO PQ** (or EUL recommendation).
- Requires at least **maturity level 3 (stable, well-functioning and integrated) national regulatory authority (NRA) and registration**

Past experiences

2024-2025 Mpox PHEIC → WHO PQ for Mpox MVA-BN vaccine

Considerations

- *WHO PQ is unlikely for BVD vaccines given the limited expected data*
- *Allows procurement through Gavi's APC mechanism or UNICEF procurement channels*

Lessons from WHO SAGE engagement in developing policy recommendations for unlicensed vaccines

- SAGE could provide recommendations based on risk-benefit for compassionate use/expanded access, including BVD vaccine strategy and target populations for vaccination

Past experiences

2018–2020 Ebola PHEIC → SAGE recommendations for Ervebo® compassionate use/expanded access

- SAGE will provide interim policy recommendations for BVD vaccines as soon as there is WHO Listed Authority (WLA) or WHO EUL in the case of non-WLA

Past experiences

2020–2023 COVID-19 PHEIC → SAGE interim recommendations for COVID-19 vaccine products

Other resources:

[WHO Ebola vaccines](#)